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LEGISLATIVE SUPPLEMENT

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PART-I
HARYANA GOVERNMENT
LAW AND LEGISLATIVE DEPARTMENT

Notification

The 3rd June, 2026

No. Leg. 24/2026.— The following Act of the Legislature of the State of Haryana received the assent of the Governor of Haryana on the 7th May, 2026 and is hereby published for general information:-

HARYANA ACT NO. 23 OF 2026
THE HARYANA CLERICAL (RECRUITMENT AND CONDITIONS OF SERVICE) ACT, 2026

AN

Act

to regulate the recruitment and conditions of service of Clerks in the State of Haryana and for matters connected therewith and incidental thereto.

Be it enacted by the Legislature of the State of Haryana in the Seventy-seventh Year of the Republic of India as follows:-

1. (1) This Act may be called the Haryana Clerical (Recruitment and Conditions of Service) Act, 2026.

Short title, commencement and application.

(2) It shall come into force from the date of its publication in the Official Gazette.

(3) It shall be applicable to the following, namely:-

- (a) persons initially appointed on regular basis to the post of Clerk by direct recruitment or compassionate appointment on or after the commencement of this Act; and
- (b) Group-D employees covered under the Haryana Group D Employees (Recruitment and Conditions of Service) Act, 2018 (5 of 2018), appointed by promotion to the post of Clerk;

Provided that nothing in this Act shall apply to the persons appointed as Clerk on regular basis in—

- (i) the constitutional or statutory bodies created by or under any law;
- (ii) the Governor House; and
- (iii) any Department of State Government before the commencement of this Act.

2. In this Act, unless the context otherwise requires,-

Definitions.

- (a) “absorption” means appointment from any other cadre to common cadre while working on deputation and the same shall thereafter be treated as appointment by transfer in the common cadre;
- (b) “Clerk” means and includes the post of Clerk, Clerk-cum-typist, Typist, Data Entry Operator, Computer Operator, Diarist, Dispatcher, Record Keeper, Cashier, Care taker, Store-keeper and PBX Clerk, sanctioned in functional pay level identical to that of Clerk in any Department of State Government as provided in Schedule A;
- (c) “common cadre” means the strength of the Clerks appointed on regular basis by any mode of appointment on or after the commencement of this Act in any Department of State Government;
- (d) “compassionate appointment” means appointment on regular basis made by the competent authority under the ex-gratia policy, the Haryana Civil Services (Compassionate Financial Assistance or Appointment) Rules, 2019, the Compassionate Appointment to Harihar Persons Policy, 2021, Veer Shaheed Samman Yojna, 2023;
- (e) “direct recruitment” means an appointment made otherwise than by promotion from within the Service or by transfer or deputation of an official already in the service of the Government of India or any State Government;

- (f) “experience” means the period of service on regular basis in the common cadre excluding the period of extraordinary leave sanctioned for a purpose other than on medical grounds and shall include the period of deemed date of appointment counted towards seniority in the common cadre;
- (g) “Government” means the Government of the State of Haryana in the Human Resources Department;
- (h) “Group D Act” means the Haryana Group D Employees (Recruitment and Conditions of Service) Act, 2018 (5 of 2018);
- (i) “member of Service” means a person appointed to Service on regular basis on or after the commencement of this Act;
- (j) “recognized university or institution” means,-
 - (i) any university or institution incorporated by law in India; or
 - (ii) any other university or institution, which is declared by the State Government to be a recognized university or institution for the purposes of this Act;
- (k) “recruiting agency” means the Haryana Staff Selection Commission or such other body constituted by the Government for selection of candidates for appointment to Service;
- (l) “Schedule” means the Schedule appended to this Act;
- (m) “Service” means the Haryana Clerical (Recruitment and Conditions of Service) under this Act;
- (n) “SETC” means State Eligibility Test in Computer Appreciation and Applications comprising “Basic Computer Knowledge Test” (Part I) and “Computer based typing Test” (Part-II) as per provisions contained in rules or instructions issued by the Government from time to time;
- (o) “State Government” means the Government of the State of Haryana.

Appointing
authority.

3. The appointment to Service shall be made by the Director General, Human Resources Department.

Number of
posts.

4. The number of posts shall be calculated on the basis of data of vacant posts in all the departments of the State Government after every six months to be filled up by direct appointment or by promotion.

Pay,
allowances,
leave, pension
and other
conditions of
Service.

5. The Haryana Civil Services (General) Rules, 2016, the Haryana Civil Services (Pay) Rules, 2016, the Haryana Civil Services (Travelling Allowance) Rules, 2016, the Haryana Civil Services (Allowances to Government Employees) Rules, 2016, the Haryana Civil Services (Leave) Rules, 2016, the Haryana Civil Services (Pension) Rules, 2016, the Haryana Civil Services (Government Employees’ Conduct) Rules, 2016 and the Haryana Civil Services (Punishment and Appeal) Rules, 2016, shall in so far as they are applicable and except to the extent expressly provided in this Act, govern members of Service in the matters of their pay, allowances, leave, pension and other conditions of Service:

Provided that the Haryana Civil Services (Pension) Rules, 2016, shall be applicable only upto the extent of Death-cum-Retirement Gratuity.

Age.

6. No person shall be appointed to any post in the Service by direct recruitment, who is less than eighteen years or more than forty-two years of age on the last date of submission of application to the recruiting agency:

Provided that relaxation in upper age limit shall be admissible as per the provisions of the Haryana Civil Services (General) Rules, 2016 or as per the instructions issued by State Government from time to time.

Qualifications.

7. No person shall be appointed to any post in the Service, unless he is in possession of qualifications and experience specified in column 3 of the Schedule B in the case of direct recruitment and those specified in column 4 of the aforesaid Schedule in the case of persons appointed other than by direct recruitment.

8. (1) No person shall be appointed to any post in the Service, unless he is,-

- (a) a citizen of India; or
- (b) a subject of Nepal; or
- (c) a subject of Bhutan:

Nationality, domicile and character of candidates appointed to Service.

Provided that a person belonging to any of the categories (b) or (c) shall be a person in whose favour a certificate of eligibility has been issued by the Government.

(2) A person in whose case a certificate of eligibility is necessary may be admitted to an examination conducted by the recruiting agency but the offer of appointment shall be given only after the necessary eligibility certificate has been issued to him by the Government.

(3) No person shall be appointed to any post in the Service by direct recruitment, unless he produces a certificate of character from the Principal Academic Officer of the university, college, school or institution last attended, if any, and similar certificate from two other responsible persons not being his relatives, who are well acquainted with him in his private life and are unconnected with his university, college, school or institution.

9. No person -

Disqualifications.

- (a) who has entered into a marriage with a person having a spouse living; or
- (b) having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment in the Service:

Provided that the Government may, if satisfied, that such marriage is permissible under the personal law applicable to such person and the other party to marriage and there are other grounds for doing so, exempt any person from the operation of this section.

10. (1) Recruitment to the post of Clerk shall be made-

Method of recruitment.

- (i) 65% by direct recruitment; and
- (ii) 30% by promotion from amongst Group D employees of common cadre on seniority-cum-merit; and
- (iii) 5% by compassionate appointment; or
- (iv) by transfer or deputation.

(2) All promotions unless otherwise provided shall be made on seniority-cum-merit basis and seniority alone shall not confer any right to such promotions.

11. (1) The following shall be the eligibility criteria for promotion to the post of Clerk under this Act, namely:-

Eligibility criteria for promotion.

- (i) have qualified 10+2 or its equivalent;
- (ii) have completed minimum five years service to the post of Group D;
- (iii) have 70% or more Annual Confidential Reports of Good or Very Good category;
- (iv) have not any departmental or judicial proceedings pending;
- (v) have not any adverse remarks regarding integrity during service career;
- (vi) have qualified SETC Part-I.

(2) Whenever a post of Clerk is to be filled up by promotion in any Department, all the Group D employees recruited prior to the enactment of Group D Act shall be considered for promotion by the Department concerned. If none of them is eligible then the information shall be sent to the Director General, Human Resources Department (in common cadre branch) regarding vacant post(s) to be filled up by promotion from amongst the Group D employees of common cadre.

(3) In the Departments where Group C posts other than Clerks are to be filled up by promotion or selection from amongst Group D employees subject to eligibility criteria prescribed in the Departmental Service Rules, the panel of three eligible Group D employees of Common Cadre against each post shall be recommended by the Government for consideration against such post to the concerned Department, where no Group D employee appointed prior to enactment of Group D Act is available for promotion or selection to such post.

State Eligibility
Test in
Computers.

12. The syllabus and other conditions of qualifying SETC and eligibility criteria of exemption from SETC shall be the same as prescribed by the State Government for the Clerks already appointed before the commencement of this Act.

Note.- After promotion to the post of Clerk, no annual increment and further promotion shall be admissible until SETC Part-II is qualified except in case of employees who have been exempted under this Act or rules/instructions issued by State Government from time to time.

Probation.

13. (1) Any person appointed to the Service shall remain on probation for a period of two years, if appointed by direct recruitment and one year if appointed otherwise, excluding the period of leave availed, if any:

Provided that-

- (a) any period after such appointment, spent on deputation on a corresponding or a higher post shall count towards the period of probation;
- (b) any period of work in equivalent or higher rank, prior to appointment to any post in the Service may, in the case of an appointment by transfer, at the discretion of the appointing authority, be allowed to count towards the period of probation fixed under this section; and
- (c) any period of officiating appointment shall be reckoned as period spent on probation, but no person who has so officiated shall, on the completion of the prescribed period of probation, be entitled to be confirmed, unless he is appointed against a regular post.

(2) If, in the opinion of the appointing authority, the work or conduct of a person during the period of probation is not satisfactory, it may,-

- (a) if such person is appointed by direct recruitment, dispense with his services; and
- (b) if such person is appointed otherwise than by direct recruitment,-
 - (i) revert him to his former post; or
 - (ii) deal with him in such other manner, as the terms and conditions of his previous appointment permit.

(3) On the completion of period of probation of a person, the appointing authority may,-

- (a) if his work or conduct has, in its opinion, been satisfactory,-
 - (i) confirm such person from the date of his appointment, if appointed against a regular vacancy; or
 - (ii) declare that he has completed his probation satisfactorily, if there is no regular vacancy; or
- (b) if his work or conduct has, in its opinion, been not satisfactory,-
 - (i) dispense with his services, if appointed by direct recruitment, if appointed otherwise, revert him to his former post or deal with him in such other manner, as the terms and conditions of his previous appointment permit; or
 - (ii) extend his period of probation and thereafter pass such order, as it could have passed on the expiry of the first period of probation:

Provided that the total period of probation including extension, if any, shall not exceed three years.

Seniority.

14. Seniority, inter-se of the members of Service shall be determined by the merit list sent by recruiting agency:

Provided that in case of members appointed by direct recruitment, the order of merit determined by the recruiting agency shall not be disturbed in fixing the seniority:

Provided further that in case of two or more members appointed on the same date by different modes of appointment, their seniority shall be determined as follows, namely:-

- (a) a member appointed by direct recruitment shall be senior to a member appointed otherwise;
- (b) a member appointed under ex-gratia policy shall be senior to a member appointed by promotion;

- (c) a member appointed by promotion shall be senior to a member appointed by transfer;
- (d) a member who is absorbed shall be senior to a surplus member adjusted against a vacant post;
- (e) in case two or more members appointed by promotion from amongst Group D employees or by transfer from any other Department or cadre, their seniority shall be determined according to the seniority of such member in the appointment from which they are promoted or transferred; and
- (f) in case of members appointed by transfer from different cadres, their seniority shall be determined according to pay, preference being given to a member, who was drawing a higher rate of pay in his previous appointment, and if the rates of pay drawn are also the same, then by the length of their service in the appointment and if the length of such service is also same, the older member shall be senior to the younger member.
- 15.** Notwithstanding anything contained in this Act, the appointing authority may impose special terms and conditions in the appointment letter, if it is deemed expedient to do so. Special provisions.
- 16.** Nothing contained in this Act shall affect reservations and other concessions required to be provided for Deprived Scheduled Castes, Other Scheduled Castes, Backward Classes, Ex-Servicemen, Persons with disabilities or any other class or category of persons in accordance with the orders issued by the State Government in this regard, from time to time under clause (4) of article 16 of the Constitution of India. Reservations.
- 17.** (1) In matters relating to discipline, penalties and appeal, member of the Service shall be governed by the Haryana Civil Services (Punishment and Appeal) Rules, 2016: Discipline, penalties and appeal.
- Provided that the nature of penalties which may be imposed, the authority empowered to impose such penalties and appellate authority shall, be such as are specified in Schedule C.
- (2) The authority competent to pass an order under clause (c) or clause (d) or clause (f) of rule 9 of the Haryana Civil Services (Punishment and Appeal) Rules, 2016 and the appellate authority shall be such as specified in Schedule D.
- 18.** (1) A member of the Service shall be liable to serve in any Department of Haryana Government and at any place, whether within or outside the State of Haryana, on being ordered so to do by the appointing authority. Liability to serve.
- (2) A member of Service may also be deputed to serve—
- (i) in a company, an association or body of individuals whether incorporated or not, which is wholly or substantially owned or controlled by the State Government, Municipal Corporation or local authority or university within the State of Haryana;
- (ii) in the Central Government or company, an association or body of individuals, whether incorporated or not, which is wholly or substantially owned or controlled by the Central Government; or
- (iii) another State Government, an international organization, an autonomous body not controlled by the Government or a private body:
- Provided that no member of the Service shall be deputed to the Central or any other State Government or any organization or body referred to in clause (ii) or clause (iii) except with his consent.
- 19.** Notwithstanding anything contained in any service rules for the time being in force, the provisions of this Act shall have effect for regulating the recruitment and conditions of service for appointment to the post of Clerk in common cadre under this Act. Overriding effect.
- 20.** If nature and duties of a post require any training or technical or professional knowledge, such in-service training shall be arranged by the Government after selection and appointment of candidate to such post and passing of any such training or course shall be part of the duties of the member of service while determining his work and conduct for confirmation in Service as well as promotion to any higher post. Training for certain posts.

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| Suspension. | 21. The power to suspend a member of Service shall lie with the Director General, Human Resources Department. |
| Power to make rules. | 22. (1) The Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.
(2) Every rule made under this Act shall, as soon as possible, after it is made, be laid before the State Legislature. |
| Power to remove difficulties. | 23. (1) If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:
Provided that no such order shall be made after the expiry of three years from the commencement of this Act.
(2) Every order made under this section, shall be laid, as soon as may be, after it is made, before the State Legislature. |
| Power to amend Schedule. | 24. (1) The Government may, by notification, amend or cancel the Schedule.
(2) Every notification issued under sub-section (1) shall, as soon as may be, after it is issued, be placed before the State Legislature. |

Schedule A*{see section 2 (b)}*

Serial number	Nomenclature of post	Scale of Pay
1	Clerk	Functional Pay Level-3, Rs. 21700-69100/-

Note 1.- Where there is any Special Pay with the pay scale of any post covered under this Act, (for example Rs. 40/- Special Pay in lieu of higher time scale with the post of Clerk in the Haryana Civil Secretariat, Financial Commissioner Secretariat, Law and Legislative Department), the Clerks so appointed shall be entitled to the same as a personal measure during the period of appointment in these offices.

Schedule B
(see section 7)

Serial number	Designation of Post	Academic qualifications and experience, if any, for direct appointment or compassionate appointment.		Academic qualifications and experience, if any, for appointment other than by direct recruitment.
1	2	3		4
1	Clerk	(i) 10+2 or its equivalent; and (ii) Hindi or Sanskrit as one of the subject in Matric or Hindi as one of the subject in Higher Education. Note.- To get annual increment or further promotion SETC in both the parts shall have to be qualified after joining service as Clerk.		By Promotion- (i) 10+2 or its equivalent; (ii) Five years' experience on Group D post; (iii) SETC Part-I; and (iv) Hindi or Sanskrit as one of the subject in Matric or Hindi as one of the subject in Higher Education. By transfer or deputation- (i) (i) 10+2 or its equivalent; (ii) two years experience as Clerk in any State Government or Government of India, and (iii) Hindi or Sanskrit as one of the subject in Matric or Hindi as one of the subject in Higher Education. Note.- To get annual increment or further promotion, SETC in both the parts shall have to be qualified after joining service as Clerk, if already not qualified.

Schedule C*(see section 17)*

Serial number	Designation of post	Appointing authority	Nature of penalty	Punishing authority	Appellate authority
1	2	3	4	5	6
1	Clerk	Director General, Human Resources Department.	(i) Minor Penalties- As prescribed in the Haryana Civil Services (Punishment and Appeal) Rules, 2016.	Head of the Department where the incumbent is/ was working.	Administrative Secretary to Government, Haryana, Human Resources Department.
			(ii) Major Penalties- As prescribed in the Haryana Civil Services (Punishment and Appeal) Rules, 2016.	Director General, Human Resources Department.	

Schedule D*(see section 17)*

Serial number	Designation of post	Appointing authority	Nature of penalty	Punishing authority	Appellate authority
1	2	3	4	5	6
1	Clerk	Director General, Human Resources Department.	(i) withholding the amount of Death-cum-Retirement Gratuity admissible under the Haryana Civil Services (Pension) Rules, 2016; (ii) termination of Service; (iii) premature retirement of a member of the service in public interest before attaining the age of superannuation.	Director General, Human Resources Department.	Administrative Secretary to Government, Haryana, Human Resources Department.

RITU GARG,
ADMINISTRATIVE SECRETARY TO GOVERNMENT, HARYANA,
LAW AND LEGISLATIVE DEPARTMENT.